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Maryland Expungement & Shielding Agent Training Reference

A complete operational knowledge base for clearing criminal records in Maryland: expungement of charges (§ 10-105) and convictions (§ 10-110), the separate shielding remedy (§ 4-503), the REDEEM Act waiting periods, the 2025 Expungement Reform Act, eligibility, exclusions, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Maryland (District or Circuit Court where the case concluded; MDEC e-filing)
Primary statutes	Crim. Proc. § 10-105 (charges) & § 10-110 (convictions); Pub. Safety § 4-503 (shielding)
Controlling changes	REDEEM Act (SB-37, 2023) reduced waits; Expungement Reform Act (SB 432, 2025) phasing from 10/1/2025
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, incl. SB 432 and the Clean Slate shielding automation

VERIFY BEFORE RELYING

Maryland offers TWO different remedies and the agent must not conflate them. **EXPUNGEMENT** (Crim. Proc. §§ 10-105 / 10-110) removes the record so thoroughly that the person can usually deny it ever happened. **SHIELDING** (Pub. Safety § 4-503) only hides the record from the public, employers, and landlords — police, courts, and certain agencies still see it, and it is a once-per-lifetime remedy for a limited list of convictions. Maryland's waiting periods and eligibility changed materially under the REDEEM Act (2023) and the Expungement Reform Act of 2025 (SB 432), which phases in from October 1, 2025, and the Clean Slate Act is automating shielding. The agent must use the correct remedy term and verify the current waiting period and eligibility before relying on any rule.

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How the agent should use this document

Maryland has three record-clearing paths and the agent routes by disposition and goal. (1) **Expungement of charges** (§ 10-105) clears NON-convictions — acquittal, nolle prosequi, dismissal, probation before judgment (PBJ), and cannabis possession — and is the broadest relief. (2) **Expungement of convictions** (§ 10-110) clears an enumerated list of misdemeanors and a handful of felonies after a waiting period. (3) **Shielding** (§ 4-503) is a lesser, once-per-lifetime remedy that hides a limited set of convictions from public view but not from law enforcement. The agent should (1) determine conviction vs. non-conviction; (2) for non-convictions apply § 10-105 and its PBJ / 3-year rules; (3) for convictions check the § 10-110 eligible list and REDEEM Act waiting period, then consider shielding if expungement is unavailable; and (4) always apply the UNIT RULE — if one offense in an incident is ineligible, the whole incident is.

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Statutory shorthand used throughout

Crim. Proc. § 10-105	EXPUNGEMENT after a charge is filed — non-convictions (acquittal, nolle, dismissal, PBJ, can
Crim. Proc. § 10-110	EXPUNGEMENT of enumerated CONVICTIONS — misdemeanors & certain felonies
Pub. Safety § 4-503	SHIELDING — hides limited “shieldable convictions” from public; once per lifetime
PBJ	Probation Before Judgment — a disposition that avoids a conviction
REDEEM Act (SB-37, 2023)	Reduced § 10-110 waits: most misd. 10→5 yrs; eligible felonies 15→7/10 yrs
SB 432 (2025)	Expungement Reform Act — probation-violation fix; restitution rule; stet-docket relief
Unit rule	If one offense in a single incident is ineligible, ALL offenses in that incident are ineligible
CJIS / MDEC	Criminal Justice Information System (records); Maryland Electronic Courts (e-filing)

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1. Eligibility rules

Three paths, considered by disposition and goal.

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Path 1 — Expungement of charges, non-convictions (§ 10-105)

The broadest relief, available where the case did not end in a conviction:

- **Acquittal, nolle prosequi, or dismissal** — expungeable (note the 3-year rule below unless a tort waiver is filed).
- **Probation before judgment (PBJ)** — expungeable, generally 3 years after the PBJ (or on discharge, whichever is later), if no intervening conviction; a PBJ for a § 21-902 (Transportation) DUI/DWI carries a 15-year rule.
- **Cannabis possession** under Crim. Law § 5-601 — expungeable.
- **Acts no longer crimes** (§ 10-105(a)(11)) and convictions **vacated** under § 8-302 — expungeable, with a narrow carve-out for pre-2020 sodomy / pre-2023 § 3-322 offenses committed in aggravating circumstances.

Path 2 — Expungement of convictions (§ 10-110)

Available for an ENUMERATED list of convictions — over 100 misdemeanors (e.g., second-degree assault § 3-203, drug possession, theft, prostitution, disorderly conduct, many fraud and regulatory offenses; fourth-degree burglary was added in 2021) and a small set of felonies (theft § 7-104, motor-vehicle theft § 7-105, possession with intent to distribute § 5-602 with restrictions, and burglary in the first/second/third degree § 6-202(a) / § 6-203). After the waiting period (Section 2), the person files a petition; the court serves the State's Attorney and notifies any listed victims.

Path 3 — Shielding (Pub. Safety § 4-503)

A lesser remedy that makes the record inaccessible to the public (and removes it from Maryland Judiciary Case Search) but leaves it visible to law enforcement, courts, and certain agencies. It applies to a list of about 12 “shieldable convictions” (excluding domestically related ones), is available no earlier than 3 years after the sentence is satisfied, and may be used only ONCE in a lifetime. Maryland's Clean Slate Act is set to automate shielding of eligible records.

AGENT GUIDANCE

Route by disposition. Non-conviction → § 10-105 expungement (the broadest). Eligible conviction → § 10-110 expungement after the REDEEM Act wait. If the conviction isn't § 10-110-eligible but is a “shieldable conviction,” consider § 4-503 shielding — but it's once-per-lifetime and weaker.

Prefer expungement over shielding when both are available: expungement removes the record and permits denial; shielding only hides it from the public while police and courts still see it.

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2. Waiting periods

Conviction waits run from satisfaction of the sentence (including parole, probation, or mandatory supervision). The REDEEM Act (2023) cut most of them.

Disposition / offense	Remedy	Waiting period	Notes
Acquittal / nolle prosequi / dismissal	§ 10-105	3 years (or sooner with tort waiver)	From disposition
Probation before judgment (PBJ)	§ 10-105	3 years (or on discharge, later)	No intervening conviction
PBJ for § 21-902 DUI/DWI	§ 10-105	15 years	Transportation Article
Cannabis possession (§ 5-601)	§ 10-105	On petition	Per statute
Most eligible misdemeanors	§ 10-110	5 years	REDEEM Act (was 10)
2nd-degree assault § 3-203 / common-law battery	§ 10-110	Own period	Per § 10-110(c)(2)
PWID cannabis § 5-602	§ 10-110	3 years	Special short wait
Eligible felonies: burglary § 6-202(a)/§ 6-203, theft § 7-104	§ 10-110	10 years	§ 10-110(c)(6)
Other eligible felonies	§ 10-110	7 years	REDEEM Act (was 15)
Domestic violence crimes	§ 10-110	15 years	Retained
Shieldable conviction	§ 4-503	3 years	Once per lifetime

The REDEEM Act is the key recent change: most misdemeanor expungement waits dropped from 10 years to 5, and eligible felony waits from 15 years to 7 (or 10 for the burglary § 6-202(a)/§ 6-203 and felony theft § 7-104 group), while the 15-year wait was retained for crimes of domestic violence. All conviction waits run from completion of the entire sentence including supervision — outstanding supervision means the clock has not started.

AGENT GUIDANCE

Compute conviction waits from satisfaction of the FULL sentence including parole/probation/mandatory supervision. Most misdemeanors = 5 yrs; eligible felonies = 7 yrs, or 10 for burglary §6-202(a)/6-203 and felony theft §7-104; domestic-violence = 15 yrs.

For non-convictions, the 3-year wait on acquittal/nolle/dismissal can be skipped if the person files a written waiver and release of tort claims — flag that option.

3. Disqualifying / ineligible offenses

Eligibility is offense- and record-specific, and three structural rules in § 10-110(d) do a lot of the work.

Structural disqualifiers (§ 10-110(d))

- **The unit rule.** If one conviction arising from a single incident/charging document is NOT eligible, then NO conviction from that incident may be expunged. This is the most important Maryland-specific trap.
- **New conviction during the waiting period.** A new conviction (other than a minor traffic offense) during the wait makes the original ineligible — unless the new conviction is itself eligible (the “chain reaction” rule).
- **Pending criminal proceeding.** A person who is a defendant in a pending case is not eligible while it is pending.

Offense categories generally not expungeable

- Convictions NOT on the § 10-110 enumerated list (most serious felonies, violent crimes, and offenses requiring sex-offender registration are excluded).
- **DUI/DWI convictions** themselves rarely vanish; only outcomes short of conviction (e.g., a PBJ, with its 15-year rule) may be expunged.
- The narrow § 10-105(a-1) carve-out: no expungement under the “no-longer-a-crime” provision for pre-October-2020 sodomy or pre-October-2023 § 3-322 offenses committed in certain aggravating circumstances (against a minor, by force, etc.).

Other limits

- **Restitution (2025 SB 432, § 10-110(f)(2)(v)).** The court must find the applicant paid court-ordered restitution or cannot pay it before granting; unpaid restitution can block expungement.
- **Court debt is NOT a bar (2023).** Unpaid court fees/costs do not bar expungement; the court must waive them — but this is separate from restitution.
- **Shielding limits.** Once per lifetime; not for domestically related convictions; barred by an unresolved matter or a new conviction in the 3-year window (unless the new conviction is itself shieldable).
- **Out-of-state / federal records** are not reachable by Maryland relief.

VERIFY BEFORE RELYING

The § 10-110 eligible-offense list is long and enumerated by Criminal Law Article section, the unit rule can disqualify an entire incident based on one charge, and the 2025 SB 432 restitution rule and probation-violation fix are phasing in from October 1, 2025. The agent must map every charge in the incident to its statute, apply the unit rule across the whole incident, and verify the current waiting period and SB 432 status before declaring eligibility.

AGENT GUIDANCE

Always run the UNIT RULE first: pull every charge from the same incident and confirm each is eligible — a single ineligible charge sinks the whole incident.

DUI is the classic Maryland disappointment: a DUI conviction generally cannot be expunged; only a PBJ or other non-conviction outcome can, and the DUI PBJ carries a 15-year wait.

4. Case outcome rules

Disposition determines the remedy, the waiting period, and the procedure. This table is the agent's primary routing logic for Maryland.

Case outcome	Remedy	Route	Waiting period
Acquittal / nolle prosequi / dismissal	§ 10-105	Petition (expunge)	3 yrs (or tort waiver)
Probation before judgment	§ 10-105	Petition (expunge)	3 yrs / 15 yrs (DUI PBJ)
Cannabis possession § 5-601	§ 10-105	Petition (expunge)	On petition
Conviction vacated (§ 8-302)	§ 10-105	Petition (expunge)	On vacatur
Eligible misdemeanor conviction	§ 10-110	Petition (expunge)	5 yrs (some vary)
Eligible felony conviction	§ 10-110	Petition (expunge)	7 or 10 yrs
Domestic violence crime	§ 10-110	Petition (expunge)	15 yrs
Shieldable conviction (not § 10-110-eligible)	§ 4-503	Petition (shield)	3 yrs, once/lifetime
Stet docket (2025 SB 432)	§ 10-105 area	Removed from public view after 3 yrs	Eff. Jan 2026
Non-enumerated / serious / sex-registration	—	Pardon route only	—

Effect of relief: an EXPUNGEMENT removes the record from public and government indexes — the person can generally deny the arrest or conviction occurred. SHIELDING only blocks public access (and removes the case from Judiciary Case Search) while law enforcement, courts, and certain agencies retain access, and the person generally cannot deny it. SB 432 (2025) also: (a) clarifies a probation violation does not automatically disqualify an otherwise-eligible record (overturning the 2022 Abhishek precedent); (b) requires the restitution finding above; and (c) effective January 2026, removes stet-docket cases from public view after three years and may make them expungement-eligible.

AGENT GUIDANCE

Tell users plainly which remedy they're getting: expungement = removed and deniable; shielding = hidden from public but visible to police/courts and not deniable.

If a user mentions a probation violation, don't auto-disqualify them — SB 432 (2025) removed that automatic bar. Verify the effective date for their county.

5. Required forms

Maryland uses standardized Judiciary forms filed in the District or Circuit Court where the case concluded, increasingly through MDEC e-filing.

Expungement (§ 10-105 / § 10-110)

- **Petition for Expungement of Records** (Judiciary form, e.g., CC-DC-CR-072 in the District Court) — identifies the case, the disposition, the statutory basis (§ 10-105 or § 10-110), and the relief sought.
- **General Waiver and Release** (for § 10-105 acquittal/nolle/dismissal cases filed within 3 years) — waives tort claims to allow earlier filing.
- **Order of Expungement** — the proposed order the judge signs.
- The court serves the State's Attorney with a copy and notifies any listed victims.

Shielding (§ 4-503)

- **Petition for Shielding** (Judiciary form) — lists the shieldable conviction(s), confirms the 3-year wait and the once-per-lifetime condition, filed in the District or Circuit Court where the case concluded.
- **Order for Shielding** for the court's signature.

AGENT GUIDANCE

Pick the form by remedy and cite the right statute box (§ 10-105 for non-convictions, § 10-110 for convictions, § 4-503 for shielding). For a within-3-year non-conviction filing, include the General Waiver and Release to skip the wait.

File in the court where the case concluded and expect the State's Attorney to be served — build the filing to withstand a possible objection.

6. Filing instructions

- 1 Get the record.** Pull the Maryland Judiciary Case Search entry and, if needed, a CJIS criminal history to confirm each charge, disposition, the incident grouping (for the unit rule), and sentence-completion dates.
- 2 Confirm the remedy and eligibility.** Expungement (§ 10-105 / § 10-110) vs. shielding (§ 4-503); the waiting period; the unit rule across the whole incident; the restitution finding; and any pending case.
- 3 Complete the Judiciary petition** (e.g., CC-DC-CR-072) with the case details and statutory basis, plus the proposed order; add the General Waiver and Release for an early non-conviction filing.
- 4 File in the District or Circuit Court where the case concluded** — via MDEC e-filing where applicable — and pay the fee (\$30 for a § 10-110 conviction expungement or a shielding petition; no fee for § 10-105 non-conviction expungement).
- 5 Service and victim notice.** The court serves the State's Attorney with a copy; for § 10-110 the court also sends written notice to each listed victim of their right to provide information.
- 6 Objection / hearing.** The State's Attorney may object within the statutory window; if there is an objection or a victim responds, the court may hold a hearing, otherwise it may grant on the papers.
- 7 Order and execution.** If granted, the court orders the agencies (and the Judiciary Case Search) to expunge or shield the records on the statutory timeline. Keep a certified copy of the order.

AGENT GUIDANCE

Venue is the court where the case CONCLUDED (District or Circuit). A person with cases in different counties files separately in each county.

The \$30 fee applies to § 10-110 conviction expungement and to shielding; § 10-105 non-conviction expungement is free, and unpaid court fees/costs are not a bar (the court must waive them).

7. Court-specific quirks

- **Two remedies, different strength.** Expungement removes the record (deniable); shielding only hides it from the public (not deniable; police/courts still see it). Always name which one applies.
- **The unit rule.** One ineligible charge in an incident blocks expungement of every charge in that incident — the single biggest Maryland pitfall.
- **Shielding is once per lifetime** and excludes domestically related convictions; it is a fallback when § 10-110 expungement is unavailable.
- **REDEEM Act waits.** Most misdemeanors 5 yrs; eligible felonies 7 or 10 yrs; domestic violence 15 yrs — all from completion of the full sentence including supervision.
- **SB 432 (2025).** A probation violation no longer automatically disqualifies; the court must make a restitution finding; and (from Jan 2026) stet-docket cases drop off public view after 3 years — phasing in from Oct 1, 2025.
- **Clean Slate automation.** Maryland is automating shielding of eligible records; a record may be shielded without a petition once implemented — verify status.
- **Court debt vs. restitution.** Unpaid court fees/costs are NOT a bar (court must waive); unpaid court-ordered restitution CAN be, unless the person cannot pay it.
- **State's Attorney service + victim notice.** § 10-110 petitions are served on the State's Attorney and listed victims are notified — expect possible objection.

AGENT GUIDANCE

Lead every Maryland conviction analysis with the unit rule and the REDEEM Act waiting period; those two determine most outcomes.

Check Clean Slate / SB 432 status for the user's situation — a record may now be eligible (or auto-shielded) that wasn't a couple of years ago.

8. Fee information

Item	Amount	Note
§ 10-105 non-conviction expungement	\$0	No fee for acquittal / nolle / dismissal / PBJ / cannabis
§ 10-110 conviction expungement	\$30	Per petition
§ 4-503 shielding petition	\$30	Once per lifetime
Unpaid court fees / costs	Waived	Not a bar; court must waive (2023 law)
Court-ordered restitution	Must be paid or unable to pay	SB 432 (2025) finding required
CJIS criminal history	CJIS fee	To confirm record before filing
Attorney fees (if represented)	Varies	Not required; MVLS and clinics offer free help

Maryland is inexpensive. Non-conviction expungement under § 10-105 is free; conviction expungement under § 10-110 and shielding under § 4-503 each cost \$30. Since 2023, unpaid court fees and costs cannot bar expungement and the court must waive them — but note the separate 2025 rule that court-ordered restitution must be paid (or the person found unable to pay) before a § 10-110 expungement is granted. The Maryland Volunteer Lawyers Service and court self-help centers assist for free.

AGENT GUIDANCE

Quote \$0 for non-conviction expungement and \$30 for conviction expungement or shielding; reassure users that unpaid court fees won't block them (the court waives those).

Flag the restitution distinction: court fees are waived, but court-ordered restitution must be paid or the person found unable to pay before a § 10-110 expungement.

9. Criminal history (CJIS) request process

Reviewing the record first confirms each disposition, the incident grouping for the unit rule, and the sentence-completion dates that start the clock.

A. Court record — Maryland Judiciary Case Search

- The free online Maryland Judiciary Case Search shows case dispositions and is the first stop to confirm outcomes and group charges by incident for the unit rule.
- A shielded case will not appear in Case Search; an expunged case is removed entirely.

B. Statewide history — CJIS Central Repository (Dept. of Public Safety)

- The Criminal Justice Information System (CJIS) Central Repository maintains the official Maryland criminal history; a person may request their own record (fingerprint-based) for a fee.
- Use it to confirm sentence-completion dates and any out-of-jurisdiction entries before filing.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Maryland, the FBI fingerprint-based Identity History Summary is the federal equivalent; Maryland relief reaches Maryland records only.

VERIFY BEFORE RELYING

CJIS request methods and fees, and the Clean Slate shielding automation status, can change. The agent should verify the current CJIS request process and fee, and whether automatic shielding has reached the user's record, at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame Maryland Judiciary Case Search as the free first step — it confirms dispositions and lets you group charges by incident for the unit rule — and the CJIS Central Repository for the official history and sentence-completion dates.

10. Sample petitions and completed examples

Maryland relief is filed on standardized Judiciary petitions in the court where the case concluded. The examples below show structure and key recitals for the three remedies. Names, dates, and identifiers are fictional and illustrative.

Example A — Petition for Expungement, conviction (§ 10-110)

IN THE DISTRICT COURT OF MARYLAND FOR BALTIMORE CITY
STATE OF MARYLAND v. ANDRE L. CARTER Case No. 1B01234567

PETITION FOR EXPUNGEMENT OF RECORDS (Crim. Proc. 10-110)

1. Petitioner: Andre L. Carter; DOB 07/22/1992.
2. On 03/14/2019 petitioner was convicted of theft under \$100 (Crim. Law 7-104), an eligible misdemeanor under 10-110(a).
3. Petitioner satisfied the entire sentence -- including probation -- on 03/14/2020.
4. More than five (5) years have elapsed since completion (REDEEM Act waiting period for eligible misdemeanors).
5. UNIT RULE: every charge arising from this incident is eligible; none is disqualifying.
6. No new conviction during the waiting period and no pending criminal proceeding (10-110(d)).
7. Court-ordered restitution, if any, has been paid (or petitioner is unable to pay) per 10-110(f)(2)(v) (SB 432).
8. Any unpaid court fees/costs are not a bar and should be waived by the court.

WHEREFORE petitioner requests an Order of Expungement of all court and police records of this case. (Copy served on the State's Attorney; listed victims notified.) Fee: \$30.

Examples B, C & D — Other remedies

B. NON-CONVICTION EXPUNGEMENT (10-105) — FREE:

An acquittal, nolle prosequi, dismissal, PBJ, or cannabis-possession case is expunged at no cost. For acquittal/nolle/dismissal filed within 3 years, attach a General Waiver and Release of tort claims to skip the 3-year wait. A PBJ is expungeable 3 years out (15 years for a 21-902 DUI PBJ).

C. SHIELDING (Pub. Safety 4-503) — ONCE PER LIFETIME:

A 'shieldable conviction' (one of ~12, excluding domestically related) may be SHIELDED from public view 3 years after the sentence is satisfied. Police and courts still see it; it is removed from Judiciary Case Search. Fee: \$30.

D. UNIT RULE ILLUSTRATION:

If an incident produced two charges -- one eligible theft and one ineligible offense -- NEITHER can be expunged under 10-110 until the ineligible one clears, because all offenses in the unit share the eligibility of the least-eligible charge.

Order of Expungement / Shielding

Each petition is accompanied by a proposed Order. The Order of Expungement directs every agency holding records (and the Maryland Judiciary Case Search) to expunge them under § 10-105 or § 10-110; the Order for Shielding directs that the records be made inaccessible to the public under § 4-503 while remaining available to law enforcement and the courts.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Maryland statutes and common practice and is not legal advice. Maryland changed its waiting periods under the REDEEM Act (2023) and its eligibility and procedures under the Expungement Reform Act of 2025 (SB 432, phasing from Oct 1, 2025), and is automating shielding under the Clean Slate Act; the agent must verify the current text of Crim. Proc. §§ 10-105 / 10-110 and Pub. Safety § 4-503, the eligible-offense lists, the unit rule, the restitution finding, CJIS request processes, and Clean Slate status before relying on any rule here.